



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

August 01, 2022

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 10590
(TENTH REVISION)

EXPIRATION DATE: 2026-06-30

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Illinois Tool Works Inc.
Glenview, IL
2. PURPOSE AND LIMITATIONS:
 - a. This special permit authorizes the manufacture, mark, sale and use of a non-DOT specification inside container, conforming with all regulations applicable to a DOT Specification 2P, with the exception of the diameter and capacity, to be used for the transportation in commerce of certain Division 2.1 gases. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use or other uses not associated with transportation in commerce.
 - c. In accordance with 49 CFR 107.107(a), party status may not be granted to a manufacturing permit. These packagings may be used in accordance with 49 CFR 173.22a.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171- 180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 173.304a(d)(3)(ii), in that a non-DOT specification container is not authorized, except as specified herein.
5. BASIS: This special permit is based on the application of Illinois Tool Works Inc. dated July 17, 2022, submitted in accordance with 49 CFR 107.109.

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Butane <i>or</i> butane mixtures	2.1	UN1011	N/A
Petroleum gases, liquefied <i>or</i> Liquefied petroleum gas	2.1	UN1075	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING: Prescribed packaging is a nonrefillable, non-DOT specification, inside container constructed in accordance with Sexton Can Company Inc., drawings LP-91-138 and LP-91-139 dated February 22, 1991, LP-91-140 and LP-91-14 dated July 22, 1991, drawing 994D0077 dated January 29, 2004 and drawing 995D0030 dated February 10, 2006 on file with the Office of Hazardous Materials Safety and Approvals and Permits Division (OHMSAPD) and DOT Specification 2P (§ 178.33), except as follows:

§ 178.33-2 Type and size.

(b) The maximum capacity of the container may not exceed 61 cubic inches (33.8 fluid ounces). The inner diameter of the largest container may not exceed 4.18 inches.

§ 178.33-7 Wall thickness. All dimensions are in inches:

Container with an Inner Diameter of:	Minimum Wall Thickness:	Minimum Base Thickness:
4.18	0.013	0.0175
3.71	0.012	0.0175
3.00	0.0085	0.0160
2.75	0.0080	0.0160
2.06	0.008	0.0140

§ 178.33-8 Tests.

(a) One container out of each lot of 1,000 containers or less successively produced per day, must be pressure tested to destruction. The test container may not distort (end may not reverse) at below 175 psig or equivalent pressure at 160 °F (whichever is less), and may not burst below 240 psig. The end must reverse before bursting. Should the test sample fail, 10 additional samples must be taken at

random from the lot and tested as above. If any of the 10 additional samples fail the test, the lot must be condemned.

§ 178.33-9 Marking.

(a) * * *

(1) “DOT-SP 10590” in lieu of “DOT 2P”.

b. TESTING: Each container filled for shipment must be heated until contents reach an equilibrium pressure of 130 °F. The container must not show leakage, distortion or other defect.

c. OPERATIONAL CONTROLS:

(1) Before each inside container is offered for transportation, the container must be packaged in an outside packaging. Each outside packaging must be marked “INSIDE CONTAINERS CONFORM WITH PROVISIONS OF DOT-SP 10590”.

(2) Each container must be filled in accordance with the provisions of § 173.304a(d)(3). Maximum charge pressure may not exceed 55 psig at 70 °F, or 125 psig at 130 °F.

8. SPECIAL PROVISIONS:

a. In accordance with the provisions of Paragraph (b) of § 173.22a, persons may use the packaging authorized by this special permit for the transportation of the hazardous materials specified in paragraph 6, only in conformance with the terms of this special permit.

b. A person who is not a holder of this special permit, but receives a package covered by this special permit, may reoffer it for transportation provided no modification or change is made to the package and it is offered for transportation in conformance with this special permit and the HMR.

c. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

d. Each packaging manufactured under the authority of this special permit must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated by the Office of Hazardous Materials Special Safety Approvals and Permits Division for a specific manufacturing facility.

- e. A current copy of this special permit must be maintained at each facility where the package is manufactured under this special permit. It must be made available to a DOT representative upon request.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight and cargo vessel.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle and cargo vessel used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in

writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in blue ink, appearing to read "William Schoonover", is written over a faint circular stamp.

for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: CWFreeman/NICKS